

Track 1 — Chapter Build Pass

MPEP Chapter 1100 · Statutory Invention Registration (SIR) & Pre-Grant Publication

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: One Discontinued Mechanism, One Very Active One

The main value here is not confusing the long-discontinued SIR mechanism with the very much still-active pre-grant publication process — plus knowing preissuance submissions as the pre-grant tool for third-party prior art.

Rule 1: Statutory Invention Registration (SIR) — A Discontinued Mechanism

PLAIN ENGLISH

A **Statutory Invention Registration (SIR)** was a legacy option letting an applicant publish their invention's disclosure (defensively, to create prior art against others) without pursuing an examined patent. The **America Invents Act eliminated SIR practice** for requests filed on or after March 16, 2013 — it's now a historical mechanism, but the underlying defensive-publication concept persists informally (e.g., publishing a technical disclosure to create prior art).

EXAMPLE

Before AIA, a company wanting to prevent competitors from patenting a minor improvement, without wanting to pursue its own patent, might have filed for an SIR to create citable prior art. Post-AIA, this specific mechanism is no longer available; the same defensive goal is achieved through other publication strategies instead.

QUIZ

Is Statutory Invention Registration (SIR) still available for requests filed today?

- (A) Yes, unchanged since before AIA
- (B) No — SIR was eliminated by the AIA for requests filed on or after March 16, 2013
- (C) Yes, but only for design applications
- (D) Yes, with a higher fee than before

Rule 2: Pre-Grant Publication (PGPub) — Distinct From SIR

PLAIN ENGLISH

Pre-grant publication (PGPub) — the standard 18-month publication of pending applications (also discussed in the Chapter 1300 PDF) — is an entirely different, still-very-much-active mechanism from the discontinued SIR. PGPub is the routine, largely automatic publication of an application as part of ordinary prosecution; SIR was a special, applicant-elected alternative to seeking an examined patent.

EXAMPLE

A pending application is automatically published 18 months after its earliest priority date under PGPub, regardless of whether it will ultimately issue as a patent — a completely different, ongoing process from the discontinued SIR mechanism.

QUIZ

Is pre-grant publication (PGPub) the same thing as Statutory Invention Registration (SIR)?

- (A) Yes, they are the same mechanism
 - (B) No — PGPub is the standard, still-active 18-month publication process; SIR was a separate, now-discontinued mechanism
 - (C) Yes, both were eliminated by the AIA
 - (D) No, PGPub only applies to design patents
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Rule 3: Preissuance Submissions by Third Parties (§1134)

PLAIN ENGLISH

Under AIA-enacted procedures, a **third party** may submit patents, published applications, or other printed publications for consideration in a **pending, published** application, along with a concise statement of relevance — but must do so before the earlier of a notice of allowance or a specific time/office-action-count deadline relative to publication. This gives third parties a limited, low-cost way to bring prior art to an examiner's attention before grant, distinct from post-grant challenges like reexamination.

EXAMPLE

A third party aware of highly relevant prior art against a competitor's published, pending application can submit that art (with a concise relevance statement) for the examiner's consideration before a notice of allowance issues — rather than waiting until after grant to challenge the patent via reexamination or IPR.

QUIZ

What is the purpose of a preissuance submission by a third party?

- (A) To formally oppose the application in an adversarial trial
 - (B) To bring relevant prior art to the examiner's attention before grant, with a concise relevance statement
 - (C) To request an interview with the examiner
 - (D) To request maintenance fee reduction
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. Can an applicant file a new SIR request today?

- (A) Yes, it remains fully available
- (B) No — SIR was eliminated by the AIA for requests filed on or after March 16, 2013
- (C) Yes, but only for provisional applications
- (D) Yes, with Director approval only

2. Is pre-grant publication (PGPub) the same mechanism as SIR?

- (A) Yes
- (B) No — PGPub is the standard, ongoing 18-month publication process, distinct from the discontinued SIR
- (C) Yes, both require an applicant election
- (D) No, PGPub applies only to reissue applications

3. A third party wants to bring prior art to an examiner's attention before a notice of allowance issues, without initiating an adversarial trial. What tool fits?

- (A) Inter partes review
- (B) A preissuance submission
- (C) Ex parte reexamination
- (D) A derivation proceeding

Memorize This: Key Tests & Terms

- **SIR** = discontinued by AIA for requests filed on/after **March 16, 2013** — legacy only.
- **PGPub** (18-month publication) is a completely different, still-active mechanism — don't confuse the two.
- **Preissuance submissions**: third-party prior art + concise relevance statement, filed before notice of allowance — pre-grant, non-adversarial, distinct from IPR/PGR/reexamination.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Statutory Invention Registration (SIR) — A Discontinued Mechanism

Is Statutory Invention Registration (SIR) still available for requests filed today?

Answer: B

SIR is a legacy, now-unavailable mechanism — a fact worth knowing precisely so it isn't confused with the still-available pre-grant publication process discussed next.

Rule 2: Pre-Grant Publication (PGPub) — Distinct From SIR

Is pre-grant publication (PGPub) the same thing as Statutory Invention Registration (SIR)?

Answer: B

These are genuinely distinct concepts that share a chapter for historical/organizational reasons — don't conflate the still-active PGPub process with the discontinued SIR mechanism.

Rule 3: Preissuance Submissions by Third Parties (§1134)

What is the purpose of a preissuance submission by a third party?

Answer: B

Preissuance submissions are a pre-grant, examiner-facing tool — not an adversarial trial like IPR/PGR, and not available after a notice of allowance has issued.

Chapter Close-Out Quiz

1. (B)

SIR was eliminated by the AIA for requests filed on or after March 16, 2013 — it's a legacy mechanism only.

2. (B)

PGPub (routine 18-month publication) and SIR (a discontinued, applicant-elected alternative to an examined patent) are genuinely distinct concepts.

3. (B)

A preissuance submission is the specific pre-grant tool for third parties to submit prior art with a relevance statement, before a notice of allowance issues.